

Contract for Consultant's Services

Lump-Sum

Project Name: Component 4: Site Technology and Planning to Support the Preparation of Serious Shea, a Shea Butter Processing Company, in Burkina Faso

Grant No. 4367

Contract No. 4

Between

Serious Shea SARL

and

Society for Technology & Action for Rural Advancement (TARA)

Dated: 26th November 2018

Handwritten signature

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PREFACE

1. The standard Contract form consists of four parts: The Form of Contract to be signed by the Client and the Consultant, the General Conditions of Contract (GCC), including Attachment 1 (Bank's Policy – Corrupt and Fraudulent Practices); the Special Conditions of Contract (SCC); and the Appendices.
2. The General Conditions of Contract, including Attachment 1, shall not be modified. The Special Conditions of Contract that contain clauses specific to each Contract intend to supplement, but not over-write or otherwise contradict, the General Conditions.



FORM OF CONTRACT

LUMP-SUM

This CONTRACT (hereinafter called the "Contract") is made the 26th day of the month of November 2018, between, on the one hand, *Serious Shea SARL* (hereinafter called the "Client") and, on the other hand, *TARA* (hereinafter called the "Consultant").

WHEREAS

- (a) the Client has requested the Consultant to provide certain consulting services as defined in this Contract (hereinafter called the "Services");
- (b) the Consultant, having represented to the Client that it has the required professional skills, expertise and technical resources, has agreed to provide the Services on the terms and conditions set forth in this Contract;
- (c) the Client has received a grant from the African Development Bank: toward the cost of the Services and intends to apply a portion of the proceeds of this grant to eligible payments under this Contract, it being understood that (i) payments by the Bank will be made only at the request of the Client and upon approval by the Bank; (ii) such payments will be subject, in all respects, to the terms and conditions of the grant agreement account for the purpose of any payment to persons or entities, or for any import of goods, if such payment or import, to the knowledge of the Bank, is prohibited by the decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations; and (iii) no party other than the Client shall derive any rights from the grant agreement or have any claim to the grant proceeds;

NOW THEREFORE the parties hereto hereby agree as follows:

- 1. The following documents attached hereto shall be deemed to form an integral part of this Contract:

- (a) The General Conditions of Contract (including Attachment 1 "Bank Policy – Corrupt and Fraudulent Practices);
- (b) The Special Conditions of Contract;
- (c) Appendices:

Appendix A: Terms of Reference

Appendix B: Key Experts

Appendix C: Breakdown of Contract Price

Appendix D: Form of Advance Payments Guarantee

In the event of any inconsistency between the documents, the following order of precedence shall prevail: The Special Conditions of Contract; the General Conditions of Contract, including Attachment 1; Appendix A; Appendix B; Appendix C; Appendix D. Any reference to this Contract shall include, where the context permits, a reference to its Appendices.

2. The mutual rights and obligations of the Client and the Consultant shall be as set forth in the Contract, in particular:
 - (a) the Consultant shall carry out the Services in accordance with the provisions of the Contract; and
 - (b) the Client shall make payments to the Consultant in accordance with the provisions of the Contract.

IN WITNESS WHEREOF, the Parties hereto have caused this Contract to be signed in their respective names as of the day and year first above written.

For and on behalf of Serious Shea SARL, Jon White



For and on behalf of TARA,



Mr. Shrashtant Patara, Chief Executive Officer at TARA

GENERAL CONDITIONS OF CONTRACT

A. GENERAL PROVISIONS

1. Definitions

- 1.1. Unless the context otherwise requires, the following terms whenever used in this Contract have the following meanings:
- (a) “Applicable Guidelines” means *policy of bank details for the use of consultants which can be found at www.afdb.org*.
 - (b) “Applicable Law” means the laws and any other instruments having the force of law in the Client’s country, or in such other country as may be specified in the Special Conditions of Contract (SCC), as they may be issued and in force from time to time.
 - (c) “Bank” means the African Development Bank, the African Development Fund and the Nigeria Trust Fund as the context may require.
 - (d) “Borrower or Recipient or Beneficiary” means the Government, Government agency or other entity that signs the financing [or loan/credit/grant/project] agreement with the Bank.
 - (e) “Client” means *the implementing/ executing* agency that signs the Contract for the Services with the Selected Consultant.
 - (f) “Consultant” means a legally-established professional consulting firm or entity selected by the Client to provide the Services under the signed Contract.
 - (g) “Contract” means the legally binding written agreement signed between the Client and the Consultant and which includes all the attached documents listed in its paragraph 1 of the Form of Contract (the General Conditions (GCC), the Special Conditions (SCC), and the Appendices).
 - (h) “Day” means a working day unless indicated otherwise.
 - (i) “Effective Date” means the date on which this Contract comes into force and effect pursuant to Clause GCC 11.
 - (j) “Experts” means, collectively, Key Experts, Non-Key Experts, or any other personnel of the Consultant, Sub-consultant or JV member(s) assigned by the Consultant to perform the Services or any part thereof under the Contract.
 - (k) “Foreign Currency” means any currency other than the currency of the Client’s country.
 - (l) “GCC” means these General Conditions of Contract.
 - (m) “Government” means the government of the Client’s country.

- (n) “Joint Venture (JV)” means an association with or without a legal personality distinct from that of its members, of more than one entity where one member has the authority to conduct all businesses for and on behalf of any and all the members of the JV, and where the members of the JV are jointly and severally liable to the Client for the performance of the Contract.
- (o) “Key Expert(s)” means an individual professional whose skills, qualifications, knowledge and experience are critical to the performance of the Services under the Contract and whose Curricula Vitae (CV) was taken into account in the technical evaluation of the Consultant’s proposal.
- (p) “Local Currency” means the currency of the Client’s country.
- (q) “Non-Key Expert(s)” means an individual professional provided by the Consultant or its Sub-consultant to perform the Services or any part thereof under the Contract.
- (r) “Party” means the Client or the Consultant, as the case may be, and “Parties” means both of them.
- (s) “SCC” means the Special Conditions of Contract by which the GCC may be amended or supplemented but not over-written.
- (t) “Services” means the work to be performed by the Consultant pursuant to this Contract, as described in Appendix A hereto.
- (u) “Sub-consultants” means an entity to whom/which the Consultant subcontracts any part of the Services while remaining solely liable for the execution of the Contract.
- (v) “Third Party” means any person or entity other than the Government, the Client, the Consultant or a Sub-consultant.

**2. Relationship
between the
Parties**

- 2.1. Nothing contained herein shall be construed as establishing a relationship of master and servant or of principal and agent as between the Client and the Consultant. The Consultant, subject to this Contract, has complete charge of the Experts and Sub-consultants, if any, performing the Services and shall be fully responsible for the Services performed by them or on their behalf hereunder.

**3. Law Governing
Contract**

- 3.1. This Contract, its meaning and interpretation, and the relation between the Parties shall be governed by the Applicable Law.

4. Language

- 4.1. This Contract has been executed in the language specified in the SCC, which shall be the binding and controlling language for all matters relating to the meaning or interpretation of this Contract.

5. Headings

- 5.1. The headings shall not limit, alter or affect the meaning of this Contract.



- 6. Communications**
- 6.1. Any communication required or permitted to be given or made pursuant to this Contract shall be in writing in the language specified in Clause GCC 4. Any such notice, request or consent shall be deemed to have been given or made when delivered in person to an authorized representative of the Party to whom the communication is addressed, or when sent to such Party at the address specified in the SCC.
- 6.2. A Party may change its address for notice hereunder by giving the other Party any communication of such change to the address specified in the SCC.
- 7. Location**
- 7.1. The Services shall be performed at such locations as are specified in **Appendix A** hereto and, where the location of a particular task is not so specified, at such locations, whether in the Government's country or elsewhere, as the Client may approve.
- 8. Authority of Member in Charge**
- 8.1. In case the Consultant is a Joint Venture, the members hereby authorize the member specified in the SCC to act on their behalf in exercising all the Consultant's rights and obligations towards the Client under this Contract, including without limitation the receiving of instructions and payments from the Client.
- 9. Authorized Representatives**
- 9.1. Any action required or permitted to be taken, and any document required or permitted to be executed under this Contract by the Client or the Consultant may be taken or executed by the officials specified in the SCC.
- 10. Corrupt and Fraudulent Practices**
- 10.1. The Bank requires compliance with its policy in regard to corrupt and fraudulent/prohibited practices as set forth in **Attachment 1** to the GCC.
- a. Commissions and Fees**
- 10.2. The Client requires the Consultant to disclose any commissions, gratuities or fees that may have been paid or are to be paid to agents or any other party with respect to the selection process or execution of the Contract. The information disclosed must include at least the name and address of the agent or other party, the amount and currency, and the purpose of the commission, gratuity or fee. Failure to disclose such commissions, gratuities or fees may result in termination of the Contract and/or sanctions by the Bank.

B. COMMENCEMENT, COMPLETION, MODIFICATION AND TERMINATION OF CONTRACT

- 11. Effectiveness of**
- 11.1. This Contract shall come into force and effect on the date (the "Effective Date") of the Client's notice to the Consultant

- Contract** instructing the Consultant to begin carrying out the Services. This notice shall confirm that the effectiveness conditions, if any, listed in the SCC have been met.
- 12. Termination of Contract for Failure to Become Effective** 12.1. If this Contract has not become effective within such time period after the date of Contract signature as specified in the SCC, either Party may, by not less than twenty two (22) days written notice to the other Party, declare this Contract to be null and void, and in the event of such a declaration by either Party, neither Party shall have any claim against the other Party with respect hereto.
- 13. Commencement of Services** 13.1. The Consultant shall confirm availability of Key Experts and begin carrying out the Services not later than the number of days after the Effective Date specified in the SCC.
- 14. Expiration of Contract** 14.1. Unless terminated earlier pursuant to Clause GCC 19 hereof, this Contract shall expire at the end of such time period after the Effective Date as specified in the SCC.
- 15. Entire Agreement** 15.1. This Contract contains all covenants, stipulations and provisions agreed by the Parties. No agent or representative of either Party has authority to make, and the Parties shall not be bound by or be liable for, any statement, representation, promise or agreement not set forth herein.
- 16. Modifications or Variations** 16.1. Any modification or variation of the terms and conditions of this Contract, including any modification or variation of the scope of the Services, may only be made by written agreement between the Parties. However, each Party shall give due consideration to any proposals for modification or variation made by the other Party.
- 16.2. In cases of substantial modifications or variations, the prior written consent of the Bank is required.
- 17. Force Majeure**
- a. Définition** 17.1 For the purposes of this Contract, "Force Majeure" means an event which is beyond the reasonable control of a Party, is not foreseeable, is unavoidable, and makes a Party's performance of its obligations hereunder impossible or so impractical as reasonably to be considered impossible under the circumstances, and subject to those requirements, includes, but is not limited to, war, riots, civil disorder, earthquake, fire, explosion, storm, flood or other adverse weather conditions, strikes, lockouts or other industrial action confiscation or any other action by Government agencies.
- 17.2. Force Majeure shall not include (i) any event which is caused by the negligence or intentional action of a Party or such

Party's Experts, Sub-consultants or agents or employees, nor (ii) any event which a diligent Party could reasonably have been expected to both take into account at the time of the conclusion of this Contract, and avoid or overcome in the carrying out of its obligations hereunder.

17.3. Force Majeure shall not include insufficiency of funds or failure to make any payment required hereunder.

b. No Breach of Contract

17.4 The failure of a Party to fulfill any of its obligations hereunder shall not be considered to be a breach of, or default under, this Contract insofar as such inability arises from an event of Force Majeure, provided that the Party affected by such an event has taken all reasonable precautions, due care and reasonable alternative measures, all with the objective of carrying out the terms and conditions of this Contract.

c. Measures to be Taken

17.5 A Party affected by an event of Force Majeure shall continue to perform its obligations under the Contract as far as is reasonably practical, and shall take all reasonable measures to minimize the consequences of any event of Force Majeure.

17.6 A Party affected by an event of Force Majeure shall notify the other Party of such event as soon as possible, and in any case not later than fourteen (14) calendar days following the occurrence of such event, providing evidence of the nature and cause of such event, and shall similarly give written notice of the restoration of normal conditions as soon as possible.

17.7 Any period within which a Party shall, pursuant to this Contract, complete any action or task, shall be extended for a period equal to the time during which such Party was unable to perform such action as a result of Force Majeure.

17.8 During the period of their inability to perform the Services as a result of an event of Force Majeure, the Consultant, upon instructions by the Client, shall either:

- (a) demobilize, in which case the Consultant shall be reimbursed for additional costs they reasonably and necessarily incurred, and, if required by the Client, in reactivating the Services; or
- (b) continue with the Services to the extent reasonably possible, in which case the Consultant shall continue to be paid under the terms of this Contract and be reimbursed for additional costs reasonably and necessarily incurred.
- (c) In the case of disagreement between the Parties as to the existence or extent of Force Majeure, the matter shall be settled according to Clauses GCC 44 & 45.

18. Suspension

18.1. The Client may, by written notice of suspension to the Consultant, suspend all payments to the Consultant hereunder if the Consultant fails to perform any of its obligations under this Contract, including the carrying out of the Services, provided that such notice of suspension (i) shall specify the nature of the failure, and (ii) shall request the Consultant to remedy such failure within a period not exceeding thirty (30) calendar days after receipt by the Consultant of such notice of suspension.

19. Termination

19.1. This Contract may be terminated by either Party as per provisions set up below:

a. By the Client

19.1.1. The Client may terminate this Contract in case of the occurrence of any of the events specified in paragraphs (a) through (f) of this Clause. In such an occurrence the Client shall give at least thirty (30) calendar days' written notice of termination to the Consultant in case of the events referred to in (a) through (d); at least sixty (60) calendar days' written notice in case of the event referred to in (e); and at least five (5) calendar days' written notice in case of the event referred to in (f):

- (a) If the Consultant fails to remedy a failure in the performance of its obligations hereunder, as specified in a notice of suspension pursuant to Clause GCC 18;
- (b) If the Consultant becomes (or, if the Consultant consists of more than one entity, if any of its members becomes) insolvent or bankrupt or enter into any agreements with their creditors for relief of debt or take advantage of any law for the benefit of debtors or go into liquidation or receivership whether compulsory or voluntary;
- (c) If the Consultant fails to comply with any final decision reached as a result of arbitration proceedings pursuant to Clause GCC 45.1;
- (d) If, as the result of Force Majeure, the Consultant is unable to perform a material portion of the Services for a period of not less than sixty (60) calendar days;
- (e) If the Client, in its sole discretion and for any reason whatsoever, decides to terminate this Contract;
- (f) If the Consultant fails to confirm availability of Key Experts as required in Clause GCC 13.

19.1.2. Furthermore, if the Client determines that the Consultant has engaged in corrupt, fraudulent, collusive, coercive *[or obstructive]* practices, in competing for or in executing the Contract, then the Client may, after giving fourteen (14)

calendar days written notice to the Consultant, terminate the Consultant's employment under the Contract.

b. By the Consultant

19.1.3. The Consultant may terminate this Contract, by not less than thirty (30) calendar days' written notice to the Client, in case of the occurrence of any of the events specified in paragraphs (a) through (d) of this Clause.

- (a) If the Client fails to pay any money due to the Consultant pursuant to this Contract and not subject to dispute pursuant to Clause GCC 45.1 within forty-five (45) calendar days after receiving written notice from the Consultant that such payment is overdue.
- (b) If, as the result of Force Majeure, the Consultant is unable to perform a material portion of the Services for a period of not less than sixty (60) calendar days.
- (c) If the Client fails to comply with any final decision reached as a result of arbitration pursuant to Clause GCC 45.1.
- (d) If the Client is in material breach of its obligations pursuant to this Contract and has not remedied the same within forty-five (45) days (or such longer period as the Consultant may have subsequently approved in writing) following the receipt by the Client of the Consultant's notice specifying such breach.

c. Cessation of Rights and Obligations

19.1.4. Upon termination of this Contract pursuant to Clauses GCC 12 or GCC 19 hereof, or upon expiration of this Contract pursuant to Clause GCC 14, all rights and obligations of the Parties hereunder shall cease, except (i) such rights and obligations as may have accrued on the date of termination or expiration, (ii) the obligation of confidentiality set forth in Clause GCC 22, (iii) the Consultant's obligation to permit inspection, copying and auditing of their accounts and records set forth in Clause GCC 25, and (iv) any right which a Party may have under the Applicable Law.

d. Cessation of Services

19.1.5. Upon termination of this Contract by notice of either Party to the other pursuant to Clauses GCC 19a or GCC 19b, the Consultant shall, immediately upon dispatch or receipt of such notice, take all necessary steps to bring the Services to a close in a prompt and orderly manner and shall make every reasonable effort to keep expenditures for this purpose to a minimum. With respect to documents prepared by the Consultant and equipment and materials furnished by the Client, the Consultant shall proceed as provided, respectively, by Clauses GCC 27 or GCC 28.

e. Payment upon Termination

19.1.6. Upon termination of this Contract, the Client shall make the following payments to the Consultant:

- (a) payment for Services satisfactorily performed prior to the

effective date of termination; and

- (b) in the case of termination pursuant to paragraphs (d) and (e) of Clause GCC 19.1.1, reimbursement of any reasonable cost incidental to the prompt and orderly termination of this Contract, including the cost of the return travel of the Experts.

C. OBLIGATIONS OF THE CONSULTANT

20. General

a. Standard of Performance

- 20.1 The Consultant shall perform the Services and carry out the Services with all due diligence, efficiency and economy, in accordance with generally accepted professional standards and practices, and shall observe sound management practices, and employ appropriate technology and safe and effective equipment, machinery, materials and methods. The Consultant shall always act, in respect of any matter relating to this Contract or to the Services, as a faithful adviser to the Client, and shall at all times support and safeguard the Client's legitimate interests in any dealings with the third parties.
- 20.2. The Consultant shall employ and provide such qualified and experienced Experts and Sub-consultants as are required to carry out the Services.
- 20.3. The Consultant may subcontract part of the Services to an extent and with such Key Experts and Sub-consultants as may be approved in advance by the Client. Notwithstanding such approval, the Consultant shall retain full responsibility for the Services.

b. Law Applicable to Services

- 20.4. The Consultant shall perform the Services in accordance with the Contract and the Applicable Law and shall take all practicable steps to ensure that any of its Experts and Sub-consultants, comply with the Applicable Law.
- 20.5. Throughout the execution of the Contract, the Consultant shall comply with the import of goods and services prohibitions in the Client's country when
 - (a) as a matter of law or official regulations, the Borrower's/Beneficiary's country prohibits commercial relations with that country; or
 - (b) by an act of compliance with a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations, the Borrower's Country prohibits any import of goods from that country or any payments to any country, person, or entity in that country.

- 20.6. The Client shall notify the Consultant in writing of relevant local customs, and the Consultant shall, after such notification, respect such customs.
- 21. Conflict of Interests**
- a. Consultant Not to Benefit from Commissions, Discounts, etc.**
- 21.1. The Consultant shall hold the Client's interests paramount, without any consideration for future work, and strictly avoid conflict with other assignments or their own corporate interests.
- 21.1.1 The payment of the Consultant pursuant to GCC F (Clauses GCC 38 through 42) shall constitute the Consultant's only payment in connection with this Contract and, subject to Clause GCC 21.1.3, the Consultant shall not accept for its own benefit any trade commission, discount or similar payment in connection with activities pursuant to this Contract or in the discharge of its obligations hereunder, and the Consultant shall use its best efforts to ensure that any Sub-consultants, as well as the Experts and agents of either of them, similarly shall not receive any such additional payment.
- 21.1.2 Furthermore, if the Consultant, as part of the Services, has the responsibility of advising the Client on the procurement of goods, works or services, the Consultant shall comply with the Bank's Applicable Guidelines, and shall at all times exercise such responsibility in the best interest of the Client. Any discounts or commissions obtained by the Consultant in the exercise of such procurement responsibility shall be for the account of the Client.
- b. Consultant and Affiliates Not to Engage in Certain Activities**
- 21.1.3 The Consultant agrees that, during the term of this Contract and after its termination, the Consultant and any entity affiliated with the Consultant, as well as any Sub-consultants and any entity affiliated with such Sub-consultants, shall be disqualified from providing goods, works or non-consulting services resulting from or directly related to the Consultant's Services for the preparation or implementation of the project, unless otherwise indicated in the SCC.
- c. Prohibition of Conflicting Activities**
- 21.1.4 The Consultant shall not engage, and shall cause its Experts as well as its Sub-consultants not to engage, either directly or indirectly, in any business or professional activities that would conflict with the activities assigned to them under this Contract.
- d. Strict Duty to Disclose Conflicting Activities**
- 21.1.5 The Consultant has an obligation and shall ensure that its Experts and Sub-consultants shall have an obligation to disclose any situation of actual or potential conflict that impacts their capacity to serve the best interest of their Client, or that may reasonably be perceived as having this effect. Failure to disclose said situations may lead to the disqualification of the Consultant or the termination of its

Contract.

- 22. Confidentiality** 22.1 Except with the prior written consent of the Client, the Consultant and the Experts shall not at any time communicate to any person or entity any confidential information acquired in the course of the Services, nor shall the Consultant and the Experts make public the recommendations formulated in the course of, or as a result of, the Services.
- 23. Liability of the Consultant** 23.1 Subject to additional provisions, if any, set forth in the SCC, the Consultant's liability under this Contract shall be as determined under the Applicable Law.
- 24. Insurance to be Taken out by the Consultant** 24.1 The Consultant (i) shall take out and maintain, and shall cause any Sub-consultants to take out and maintain, at its (or the Sub-consultants', as the case may be) own cost but on terms and conditions approved by the Client, insurance against the risks, and for the coverage specified in the SCC, and (ii) at the Client's request, shall provide evidence to the Client showing that such insurance has been taken out and maintained and that the current premiums therefore have been paid. The Consultant shall ensure that such insurance is in place prior to commencing the Services as stated in Clause GCC 13.
- 25. Accounting, Inspection and Auditing** 25.1 The Consultant shall keep, and shall make all reasonable efforts to cause its Sub-consultants to keep, accurate and systematic accounts and records in respect of the Services and in such form and detail as will clearly identify relevant time changes and costs.
- 25.2 The Consultant shall permit and shall cause its Sub-consultants to permit, the Bank and/or persons appointed by the Bank to inspect the Site and/or all accounts and records relating to the performance of the Contract and the submission of the Proposal to provide the Services, and to have such accounts and records audited by auditors appointed by the Bank if requested by the Bank. The Consultant's attention is drawn to Clause GCC 10 which provides, inter alia, that acts intended to materially impede the exercise of the Bank's inspection and audit rights provided for under this Clause GCC 25.2 constitute a prohibited practice subject to contract termination (as well as to a determination of ineligibility under the Bank's prevailing sanctions procedures.)
- 26. Reporting Obligations** 26.1 The Consultant shall submit to the Client the reports and documents specified in Appendix A, in the form, in the numbers and within the time periods set forth in the said Appendix.
- 27. Proprietary Rights of the Client in** 27.1 Unless otherwise indicated in the SCC, all reports and relevant data and information such as maps, diagrams, plans, databases,

**Reports and
Records**

other documents and software, supporting records or material compiled or prepared by the Consultant for the Client in the course of the Services shall be confidential and become and remain the absolute property of the Client. The Consultant shall, not later than upon termination or expiration of this Contract, deliver all such documents to the Client, together with a detailed inventory thereof. The Consultant may retain a copy of such documents, data and/or software but shall not use the same for purposes unrelated to this Contract without prior written approval of the Client.

- 27.2 If license agreements are necessary or appropriate between the Consultant and third parties for purposes of development of the plans, drawings, specifications, designs, databases, other documents and software, the Consultant shall obtain the Client's prior written approval to such agreements, and the Client shall be entitled at its discretion to require recovering the expenses related to the development of the program(s) concerned. Other restrictions about the future use of these documents and software, if any, shall be specified in the SCC.

**28. Equipment,
Vehicles and
Materials**

- 28.1 Equipment, vehicles and materials made available to the Consultant by the Client, or purchased by the Consultant wholly or partly with funds provided by the Client, shall be the property of the Client and shall be marked accordingly. Upon termination or expiration of this Contract, the Consultant shall make available to the Client an inventory of such equipment, vehicles and materials and shall dispose of such equipment, vehicles and materials in accordance with the Client's instructions. While in possession of such equipment, vehicles and materials, the Consultant, unless otherwise instructed by the Client in writing, shall insure them at the expense of the Client in an amount equal to their full replacement value.
- 28.2 Any equipment or materials brought by the Consultant or its Experts into the Client's country for the use either for the project or personal use shall remain the property of the Consultant or the Experts concerned, as applicable.

D. CONSULTANT'S EXPERTS AND SUB-CONSULTANTS**29. Description of Key
Experts**

- 29.1 The title, agreed job description, minimum qualification and estimated period of engagement to carry out the Services of each of the Consultant's Key Experts are described in Appendix B.

**30. Replacement of Key
Experts**

- 30.1 Except as the Client may otherwise agree in writing, no changes shall be made in the Key Experts.
- 30.2 Notwithstanding the above, the substitution of Key Experts during Contract execution may be considered only based on

the Consultant's written request and due to circumstances outside the reasonable control of the Consultant, including but not limited to death or medical incapacity. In such case, the Consultant shall forthwith provide as a replacement, a person of equivalent or better qualifications and experience, and at the same rate of remuneration.

31. Removal of Experts or Sub-consultants

- 31.1 If the Client finds that any of the Experts or Sub-consultant has committed serious misconduct or has been charged with having committed a criminal action, or shall the Client determine that Consultant's Expert of Sub-consultant have engaged in corrupt, fraudulent, collusive, coercive [or obstructive] practice while performing the Services, the Consultant shall, at the Client's written request, provide a replacement.
- 31.2 In the event that any of Key Experts, Non-Key Experts or Sub-consultants is found by the Client to be incompetent or incapable in discharging assigned duties, the Client, specifying the grounds therefore, may request the Consultant to provide a replacement.
- 31.3 Any replacement of the removed Experts or Sub-consultants shall possess better qualifications and experience and shall be acceptable to the Client.
- 31.4 The Consultant shall bear all costs arising out of or incidental to any removal and/or replacement of such Experts.

E. OBLIGATIONS OF THE CLIENT

32. Assistance and Exemptions

- 32.1 Unless otherwise specified in the SCC, the Client shall use its best efforts to:
- (a) Assist the Consultant with obtaining work permits and such other documents as shall be necessary to enable the Consultant to perform the Services.
 - (b) Assist the Consultant with promptly obtaining, for the Experts and, if appropriate, their eligible dependents, all necessary entry and exit visas, residence permits, exchange permits and any other documents required for their stay in the Client's country while carrying out the Services under the Contract.
 - (c) Facilitate prompt clearance through customs of any property required for the Services and of the personal effects of the Experts and their eligible dependents.
 - (d) Issue to officials, agents and representatives of the Government all such instructions and information as may be

necessary or appropriate for the prompt and effective implementation of the Services.

- (e) Assist the Consultant and the Experts and any Sub-consultants employed by the Consultant for the Services with obtaining exemption from any requirement to register or obtain any permit to practice their profession or to establish themselves either individually or as a corporate entity in the Client's country according to the applicable law in the Client's country.
- (f) Assist the Consultant, any Sub-consultants and the Experts of either of them with obtaining the privilege, pursuant to the applicable law in the Client's country, of bringing into the Client's country reasonable amounts of foreign currency for the purposes of the Services or for the personal use of the Experts and of withdrawing any such amounts as may be earned therein by the Experts in the execution of the Services.
- (g) Provide to the Consultant any such other assistance as may be specified in the SCC.

33. Access to Project Site

- 33.1 The Client warrants that the Consultant shall have, free of charge, unimpeded access to the project site in respect of which access is required for the performance of the Services. The Client will be responsible for any damage to the project site or any property thereon resulting from such access and will indemnify the Consultant and each of the experts in respect of liability for any such damage, unless such damage is caused by the willful default or negligence of the Consultant or any Sub-consultants or the Experts of either of them.

34. Change in the Applicable Law Related to Taxes and Duties

- 34.1 If, after the date of this Contract, there is any change in the applicable law in the Client's country with respect to taxes and duties which increases or decreases the cost incurred by the Consultant in performing the Services, then the remuneration and reimbursable expenses otherwise payable to the Consultant under this Contract shall be increased or decreased accordingly by agreement between the Parties hereto, and corresponding adjustments shall be made to the Contract price amount specified in Clause GCC 38.1

35. Services, Facilities and Property of the Client

- 35.1 The Client shall make available to the Consultant and the Experts, for the purposes of the Services and free of any charge, the services, facilities and property described in the Terms of Reference (Appendix A) at the times and in the manner specified in said Appendix A.

36. Counterpart

- 36.1 The Client shall make available to the Consultant free of charge such professional and support counterpart

Personnel

personnel, to be nominated by the Client with the Consultant's advice, if specified in Appendix A.

- 36.2 Professional and support counterpart personnel, excluding Client's liaison personnel, shall work under the exclusive direction of the Consultant. If any member of the counterpart personnel fails to perform adequately any work assigned to such member by the Consultant that is consistent with the position occupied by such member, the Consultant may request the replacement of such member, and the Client shall not unreasonably refuse to act upon such request.

37. Payment Obligation

- 37.1 In consideration of the Services performed by the Consultant under this Contract, the Client shall make such payments to the Consultant for the deliverables specified in Appendix A and in such manner as is provided by GCC F below.

F. PAYMENTS TO THE CONSULTANT**38. Contract Price**

- 38.1 The Contract price is fixed and is set forth in the SCC. The Contract price breakdown is provided in Appendix C.
- 38.2 Any change to the Contract price specified in Clause 38.1 can be made only if the Parties have agreed to the revised scope of Services pursuant to Clause GCC 16 and have amended in writing the Terms of Reference in Appendix A.

39. Taxes and Duties

- 39.1 The Consultant, Sub-consultants and Experts are responsible for meeting any and all tax liabilities arising out of the Contract unless it is stated otherwise in the SCC.
- 39.2 As an exception to the above and as stated in the SCC, all local identifiable indirect taxes (itemized and finalized at Contract negotiations) are reimbursed to the Consultant or are paid by the Client on behalf of the Consultant.

40. Currency of Payment

- 40.1 Any payment under this Contract shall be made in the currency(ies) of the Contract.

41. Mode of Billing and Payment

- 41.1 The total payments under this Contract shall not exceed the Contract price set forth in Clause GCC 38.1.
- 41.2 The payments under this Contract shall be made in lump-sum installments against deliverables specified in Appendix A. The payments will be made according to the payment schedule stated in the SCC.
- 41.2.1 Advance payment: Unless otherwise indicated in the SCC, an advance payment shall be made against an advance payment bank guarantee acceptable to the Client in an

amount (or amounts) and in a currency (or currencies) specified in the SCC. Such guarantee (i) is to remain effective until the advance payment has been fully set off, and (ii) is to be in the form set forth in Appendix D, or in such other form as the Client shall have approved in writing. The advance payments will be set off by the Client in equal portions against the lump-sum installments specified in the SCC until said advance payments have been fully set off.

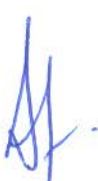
41.2.2 The Lump-Sum Installment Payments. The Client shall pay the Consultant within sixty (60) days after the receipt by the Client of the deliverable(s) and the cover invoice for the related lump-sum installment payment. The payment can be withheld if the Client does not approve the submitted deliverable(s) as satisfactory in which case the Client shall provide comments to the Consultant within the same sixty (60) days period. The Consultant shall thereupon promptly make any necessary corrections, and thereafter the foregoing process shall be repeated.

41.2.3 The Final Payment: The final payment under this Clause shall be made only after the final report has been submitted by the Consultant and approved as satisfactory by the Client. The Services shall then be deemed completed and finally accepted by the Client. The last lump-sum installment shall be deemed approved for payment by the Client within ninety (90) calendar days after receipt of the final report by the Client unless the Client, within such ninety (90) calendar day period, gives written notice to the Consultant specifying in detail deficiencies in the Services, the final report. The Consultant shall thereupon promptly make any necessary corrections, and thereafter the foregoing process shall be repeated. 41.2.4 All payments under this Contract shall be made to the accounts of the Consultant specified in the SCC.

41.2.4 With the exception of the final payment under 41.2.3 above, payments do not constitute acceptance of the whole Services nor relieve the Consultant of any obligations hereunder.

42. Interest on Delayed Payments

42.1 If the Client had delayed payments beyond fifteen (15) days after the due date stated in Clause GCC 41.2.2, interest shall be paid to the Consultant on any amount due by, not paid on, such due date for each day of delay at the annual rate stated in the SCC.



G. FAIRNESS AND GOOD FAITH**43. Good Faith**

- 43.1 The Parties undertake to act in good faith with respect to each other's rights under this Contract and to adopt all reasonable measures to ensure the realization of the objectives of this Contract.

H. SETTLEMENT OF DISPUTES**44. Amicable Settlement**

- 44.1 The Parties shall seek to resolve any dispute amicably by mutual consultation.
- 44.2 If either Party objects to any action or inaction of the other Party, the objecting Party may file a written Notice of Dispute to the other Party providing in detail the basis of the dispute. The Party receiving the Notice of Dispute will consider it and respond in writing within fourteen (14) days after receipt. If that Party fails to respond within fourteen (14) days, or the dispute cannot be amicably settled within fourteen (14) days following the response of that Party, Clause GCC 45.1 shall apply.

45. Dispute Resolution

- 45.1 Any dispute between the Parties arising under or related to this Contract that cannot be settled amicably may be referred to by either Party to the adjudication/arbitration in accordance with the provisions specified in the SCC.

II. General Conditions

ATTACHMENT 1: Bank Policy – Corrupt and Fraudulent Practices

It is the Bank's policy to require that Borrowers (including beneficiaries of Bank Financing), consultants and their agents (whether declared or not), sub-contractors, sub-consultants, service providers or suppliers and any personnel thereof, observe the highest standard of ethics during the selection and execution of Bank-financed contracts¹. In pursuance of this policy, the Bank:

(a) defines, for the purposes of this provision, the terms set forth below as follows:

- (i) "corrupt practice" is the offering, giving, receiving or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party²;
- (ii) "fraudulent practice" is any act or omission, including misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party³ to obtain financial or other benefit or to avoid an obligation;
- (iii) "collusive practice" is an arrangement between two or more parties⁴ designed to achieve an improper purpose, including to influence improperly the actions of another party;
- (iv) "coercive practice" is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party⁵;
- (v) "obstructive practice" is
 - (aa) deliberately destroying, falsifying, altering, or concealing of evidence material to the investigation or making false statements to investigators in order to materially impede a Bank investigation into allegations of a corrupt, fraudulent, coercive, or collusive practice; and/or threatening, harassing or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation, or

¹ In this context, any action taken by a consultant or any of its personnel, or its agents, or its sub-consultants, sub-contractors, service providers, suppliers, and/or their employees, to influence the selection process or contract execution for undue advantage, is improper.

² For the purpose of this sub-paragraph, "another party" refers to a public official acting in relation to the selection process or contract execution. In this context, "public official" includes Bank staff and employees of other organizations taking or reviewing selection decisions

³ For the purpose of this sub-paragraph, "party" refers to a public official; the terms "benefit" and "obligation" relate to the selection process or contract execution, and the "act or omission" is intended to influence the selection process or contract execution.

⁴ For the purpose of this sub-paragraph, "parties" refers to participants in the procurement or selection process (including public officials) attempting either themselves, or through another person or entity not participating in the procurement or selection process, to simulate competition or to establish contract prices at artificial, non-competitive levels, or are privy to each other's bid prices or other conditions.

⁵ For the purpose of this sub-paragraph, "party" refers to a participant in the selection process or contract execution.

- (bb) acts intended to materially impede the exercise of the Bank's inspection and audit rights provided for under paragraph 1.22(e) below.
- (b) will reject a proposal for award if it determines that the consultant recommended for award, or any of its personnel, or its agents, or its sub-consultants, sub-contractors, service providers, suppliers and/or their employees, has, directly or indirectly, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices in competing for the contract in question;
- (c) will declare misprocurement and cancel the portion of the Financing allocated to a contract if it determines at any time that representatives of the Borrower or of a recipient of any part of the proceeds of the Financing were engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices during the selection process or the implementation of the contract in question, without the Borrower having taken timely and appropriate action satisfactory to the Bank to address such practices when they occur, including by failing to inform the Bank in a timely manner at the time they knew of the practices;
- (d) will sanction a firm or an individual, at any time, in accordance with prevailing Bank's sanctions procedures⁶, including by publicly declaring such firm or individual ineligible either indefinitely or for a stated period of time, (i) to be awarded a Bank-financed contract; and (ii) to be a nominated⁷ as sub-consultant, supplier, or service provider of an otherwise eligible firm being awarded a Bank-financed contract; and
- (e) will require that a clause be inserted in the RFP and in contracts financed by the Bank, requiring consultants and their agents, personnel, sub-consultants, sub-contractors, service providers, or suppliers, to permit the Bank to inspect all accounts, records and other documents relating to the submission of proposals and contract performance and to have them audited by auditors appointed by the Bank.

⁶ A firm or an individual may be declared ineligible to be awarded a Bank-financed contract (i) upon completion of the Bank's sanctions proceedings as per its sanctions procedures, including, inter alia, cross-debarment as agreed with other International Financial Institutions, including Multilateral Development Banks, or otherwise decided by the Bank, and through the application of the Proposal for the Implementation of a Sanctions Process within the African Development Bank; and (ii) as a result of temporary suspension or early temporary suspension in connection with an on-going sanctions proceeding.

⁷ A nominated sub-consultant, supplier, or service provider is one which has been either: (i) included by the consultant in its proposal because it brings specific and critical experience and know-how that are accounted for in the technical evaluation of the consultant's proposal for the particular services, or (ii) appointed by the Borrower.

III. Special Conditions of Contract

Number of GC Clause	Amendments of, and Supplements to, Clauses in the General Conditions of Contract
1.1(b) and 3.1	The Contract shall be construed in accordance with the law of the United Kingdom
4.1	The language is: <i>English</i> .
6.1 and 6.2	The addresses are: Client: Serious Shea SARL Attention: Mr. Alastair Woods Facsimile: _____ E-mail (where permitted): <u>alastair.woods@impactagri.com</u> Consultant: TARA Attention: Mr. Shrashtant Patara Facsimile: _____ E-mail: <u>spatara@devalt.org</u>
8.1	The Lead Member on behalf of the JV is <i>N/A</i>
9.1	The Authorized Representatives are: For the Client: Mr. Alastair Woods, Lead Coordinator Serious Shea For the Consultant: Mr. Shrashtant Patara, TARA
11.1	The effectiveness conditions are the following: " <i>N/A</i> "
12.1	Termination of Contract for Failure to Become Effective: The time period shall be 20 days
13.1	Commencement of Services: The number of days shall be within 7 days Confirmation of Key Experts' availability to start the Assignment shall be submitted to the Client in writing as a written statement signed by each

	Key Expert.
14.1	Expiration of Contract: The time period shall be <i>12 months</i>
21 b.	The Client reserves the right to determine on a case-by-case basis whether the Consultant should be disqualified from providing goods, works or non-consulting services due to a conflict of a nature described in Clause GCC 21.1.3 Yes
23.1	No additional provisions. [OR The following limitation of the Consultant's Liability towards the Client can be subject to the Contract's negotiations: "Limitation of the Consultant's Liability towards the Client: (a) Except in the case of gross negligence or willful misconduct on the part of the Consultant or on the part of any person or a firm acting on behalf of the Consultant in carrying out the Services, the Consultant, with respect to damage caused by the Consultant to the Client's property, shall not be liable to the Client: (i) for any indirect or consequential loss or damage; and (ii) for any direct loss or damage that exceeds 1 times the total value of the Contract; (b) This limitation of liability shall not (i) affect the Consultant's liability, if any, for damage to Third Parties caused by the Consultant or any person or firm acting on behalf of the Consultant in carrying out the Services; (ii) be construed as providing the Consultant with any limitation or exclusion from liability which is prohibited by the Burkina Faso law
24.1	The insurance coverage against the risks shall be as follows: (a) Professional liability insurance, with a minimum coverage of not less

	than US\$ 120,000
27.2	The Consultant shall not use <i>any material (both input and output)</i> for purposes unrelated to this Contract without the prior written approval of the Client.
38.1	The Contract price is: US\$ 150,000 inclusive of local indirect taxes. Any indirect local taxes chargeable in respect of this Contract for the Services provided by the Consultant shall “reimbursed” by the Client “to” the Consultant.
39.1 and 39.2	The Client warrants that <i>“the Client shall reimburse the Consultant, the Sub-consultants and the Experts”</i> any indirect taxes, duties, fees, levies and other impositions imposed, under the applicable law in the Client’s country, on the Consultant, the Sub-consultants and the Experts in respect of: (a) any payments whatsoever made to the Consultant, Sub-consultants and the Experts (other than nationals or permanent residents of the Client’s country), in connection with the carrying out of the Services; (b) any equipment, materials and supplies brought into the Client’s country by the Consultant or Sub-consultants for the purpose of carrying out the Services and which, after having been brought into such territories, will be subsequently withdrawn by them; (c) any equipment imported for the purpose of carrying out the Services and paid for out of funds provided by the Client and which is treated as property of the Client; (d) any property brought into the Client’s country by the Consultant, any Sub-consultants or the Experts (other than nationals or permanent residents of the Client’s country), or the eligible dependents of such experts for their personal use and which will subsequently be withdrawn by them upon their respective departure from the Client’s country, provided that: i) the Consultant, Sub-consultants and experts shall follow the usual customs procedures of the Client’s country in importing property into the Client’s country; and

	ii) if the Consultant, Sub-consultants or Experts do not withdraw but dispose of any property in the Client's country upon which customs duties and taxes have been exempted, the Consultant, Sub-consultants or Experts, as the case may be, (a) shall bear such customs duties and taxes in conformity with the regulations of the Client's country, or (b) shall reimburse them to the Client if they were paid by the Client at the time the property in question was brought into the Client's country.
41.2	The payment schedule: • 1st payment: Delivery of signed contract and inception report: US\$15,000 (10% of the total contract) • 2nd payment: Delivery of initial one-pager for each high-level centre designs and alternatives (D1a): US\$22,500 (15% of the total contract) • 3rd payment: high-level centre designs and alternatives (D1): US\$22,500 (15% of the total contract) • 4th payment: Execution of feedback workshop with Serious Shea team and delivery of findings with workshop feedback integrated (D2): US\$30,000 (20% of the total contract) • Final payment on delivery of validated designs and specifications (D3 to D8): US\$60,000 (40% of the total contract)
41.2.4	The accounts are: Beneficiary Name: Society for Technology and Action for Rural Advancement Account No. (for Credit): 9009 216 00000 16 Account Type: Savings Centre (Location): Sec.V , R K Puram Name of the Bank: Syndicate Bank Name of the Branch: Sec.V , R K Puram , New Delhi IFSC code of the Bank: SYNB0009009
42.1	The interest rate is: N/A
45.1	Note: In contracts with foreign consultants, the Bank requires that the international commercial arbitration in a neutral venue is used. Disputes shall be settled by arbitration in accordance with the following provisions: 1. <u>Selection of Arbitrators.</u> Each dispute submitted by a Party to arbitration shall be heard by a sole arbitrator or an arbitration panel composed of three (3) arbitrators, in accordance with the following provisions:

	proceedings, either Party may apply to <i>the Federation Internationale des Ingenieurs-Conseil (FIDIC) of Lausanne, Switzerland</i> for a list of not fewer than five (5) nominees and, on receipt of such list, the Parties shall alternately strike names therefrom, and the last remaining nominee on the list shall be the sole arbitrator for the matter in dispute. If the last remaining nominee has not been determined in this manner within sixty (60) days of the date of the list, <i>the Federation Internationale des Ingenieurs-Conseil (FIDIC) of Lausanne, Switzerland</i> shall appoint, upon the request of either Party and from such list or otherwise, a sole arbitrator for the matter in dispute. (b) Where the Parties do not agree that the dispute concerns a technical matter, the Client and the Consultant shall each appoint one (1) arbitrator, and these two arbitrators shall jointly appoint a third arbitrator, who shall chair the arbitration panel. If the arbitrators named by the Parties do not succeed in appointing a third arbitrator within thirty (30) days after the latter of the two (2) arbitrators named by the Parties has been appointed, the third arbitrator shall, at the request of either Party, be appointed by <i>the Secretary General of the Permanent Court of Arbitration, The Hague</i> (c) If, in a dispute subject to paragraph (b) above, one Party fails to appoint its arbitrator within thirty (30) days after the other Party has appointed its arbitrator, the Party which has named an arbitrator may apply to the <i>the Secretary General of the Permanent Court of Arbitration, The Hague</i> to appoint a sole arbitrator for the matter in dispute, and the arbitrator appointed pursuant to such application shall be the sole arbitrator for that dispute.
	2. <u>Rules of Procedure.</u> Except as otherwise stated herein, arbitration proceedings shall be conducted in accordance with the rules of procedure for arbitration of the United Nations Commission on International Trade Law (UNCITRAL) as in force on the date of this Contract. 3. <u>Substitute Arbitrators.</u> If for any reason an arbitrator is unable to perform his/her function, a substitute shall be appointed in the same manner as the original arbitrator. 4. <u>Nationality and Qualifications of Arbitrators.</u> The sole arbitrator or the third arbitrator appointed pursuant to paragraphs 1(a) through 1(c) above shall be an internationally recognized legal or technical expert with extensive experience in relation to the matter in dispute and shall not be a national of the Consultant's home country or of the Government's country. For the purposes of this Clause, "home

	country” means any of: (a) the country of incorporation of the Consultant or of any of their members or Parties; or (b) the country in which the Consultant’s or any of their members’ or Parties’ principal place of business is located; or (c) the country of nationality of a majority of the Consultant’s or of any members’ or Parties’ shareholders; or (d) the country of nationality of the Sub-consultants concerned, where the dispute involves a subcontract.
	5. <u>Miscellaneous</u>. In any arbitration proceeding hereunder: (a) proceedings shall, unless otherwise agreed by the Parties, be held in <i>the Secretary General of the Permanent Court of Arbitration, The Hague</i> (b) the <i>English</i> language shall be the official language for all purposes; and (c) the decision of the sole arbitrator or of a majority of the arbitrators (or of the third arbitrator if there is no such majority) shall be final and binding and shall be enforceable in any court of competent jurisdiction, and the Parties hereby waive any objections to or claims of immunity in respect of such enforcement.

APPENDICES

APPENDIX A – TERMS OF REFERENCE

1.1. Background

Shea processing is a major industry in Burkina Faso, and conducted almost exclusively by women's groups; however, it still involves outdated methods: potentially degrading habitats including shea trees, emitting significant greenhouse gas emissions, causing a number of health and hygiene risks, and not realising its potential to support social and -economic development.

A consortium including an international project developer, a renowned local shea processing training company, and an engineering firm have established **Serious Shea**, which seeks to improve the shea butter-making process in Burkina Faso.

The project has received the firm support of the Ministry of Environment in Burkina Faso, and grant funding from the African Development Bank and World Bank to conduct the preparation activities, and will ensure women's groups can produce the shea butter more efficiently and sustainably, and also achieve significantly better access-to-market (receiving 2x - 5x more profit per tonne). The project will use clean technology at each processing centre and drive reforestation / afforestation at the collection sites, generating certified carbon credits by decarbonising the process and REDD+.

1.2. Design

Serious Shea has been established to enable the sustainable sourcing, processing and export of shea butter, displacing traditional methods, which drive significant deforestation and greenhouse gas emissions, and offer no socio-economic improvement to the women's groups.

The foundation of the agribusiness is the implementation of clean and efficient processing centres, known as *Eco-Processing Centres* where the training and technology is provided to the women's groups to collect the shea nuts sustainably, and process shea butter cleanly and efficiently.

The project will transform the shea sector in Burkina Faso and enable the production and export of high volume and high-quality sustainable shea butter, where the product is facing rapidly increasing demand from cosmetic and food (e.g. chocolate) markets. Importantly, local women's groups are core partners in Serious Shea, and will achieve significantly better access-to-market and 2x-5x higher income.

1.3. Preparation Activities

Serious Shea has secured grant support from the AFT Fund (Agricultural Fast-Track Fund), established by the AfDB (African Development Bank), which will fund key preparation activities for the agribusiness. Serious Shea therefore has grant funding support to complete preparatory planning and assessment, including business planning, forestry mapping, site feasibility assessments, and the technology designs. The key objective in completing this work is to assist Serious Shea in raising funds for implementation.

More specifically, the preparation work includes the following:

Component 1: A Validated and Bankable Business Plan

- Validate key financial assumptions, including capital costs, production volumes, operational costs, etc.
- Engage potential off-takers to estimate purchasing requirements, prices, etc. for financial model
- Develop and finalize financial model, including cashflow, P&L, balance sheet and potential optimal funding structure
- Finalize draft business plan, outlining core strategy, key activities, logistics, team, risks management, financial projections, investment requirements, etc.

Component 2: Site Feasibility and Mapping Assessments

- Identify preferred 60 collection sites and location of 10 processing centres based on assessment of the concentration of women's groups, shea production areas, REDD+ regions, existing transportation networks, processing volumes, social assessment of communities and women's groups surrounding each collecting site
- Complete optimal design for logistics of Serious Shea's supply chain, which includes the process of collecting the fruit/nuts, storing the fruit/nuts, legal agreements with suppliers, payment processes, processed butter logistics, and export logistics

Component 3: Tree Mapping and Forestry Assessments

- Identify and classify the best areas for collection and processing of shea fruits
- Characterize each collecting area based on habitat and potential harvest. This objective is to develop a baseline of the existing shea habitat and associated drivers that are influencing production (e.g. fire, climate, agricultural practices). The objective is to also identify maximum, minimum and most likely volumes of shea nuts that could be sourced from each of the 60 collection areas
- Develop shea management plan to be implemented at each collecting centre to ensure sustainable shea harvesting, inform any tree or habitat improvement. This includes ways to influence mentalities/taboos about shea trees, training on grafting/pruning/etc., collective action for best shea management practices (collection dates, fire control, livestock encroachment, etc.), maybe the setup of women's shea plots with access to land "ownership" through village-level conventions and endorsement from traditional village authorities, etc. This will draw from the vegetation baseline (Component 3) and social baseline (Component 2)
- Establish a Geographical Information System (GIS) as a management tool to track shea production, harvesting and impact of activities

Component 4: Site Technology Design and Development

- Outline potential technological options for collecting, storing, processing and transporting of shea butter on a large-scale across Burkina Faso
- Refine potential solutions with key stakeholders (including Serious Shea and the women's groups), rank/prioritize preferred solutions and agree preferred technical design
- Prepare detailed final designs, costings, and implementation plan for 60 collection sites, storage facility, transport logistics and 10 processing centres

This document refers exclusively to **Component 4: Site Technical Development and Planning**, which is covered in more detail in the following sections.



Goals & Objectives of Serious Shea Site Feasibility Assessments

Component 4 of the AFT grant focuses on site technology development and planning. The overarching goals are to:

- Outline potential technological options for collecting, storing, processing and transporting of shea butter on a large-scale across Burkina Faso
- Refine potential solutions with key stakeholders (including Serious Shea and the women's groups), rank/prioritize preferred solutions and agree preferred technical design
- Prepare detailed final designs, costings, and implementation plan for 60 collection sites, storage facility, transport logistics and 10 processing centres



Scope of Services, Tasks, and Expected Deliverables

1.1. Draft Technical Designs and Alternatives

1.1.1. Activities, Components and Tasks

- Provide profiles of equipment (including capacity, suppliers, lifespan, specifications, etc.) within each processing centre including the following:
 - *Tools and equipment to collect shea fruit*
 - *Solar cookers and steam boilers to dry and boil the nuts cleanly and efficiently*
 - *Warehousing/storage facilities for dried nuts*
 - *Solar-powered motors, which enable the women's groups to produce the shea paste quickly without the strenuous physical labour of traditional manual methods*
 - *Large-scale improved cookstoves to boil the mixture and extract the butter*
 - *Equipment to assess and monitor quality of final and intermediary products*
 - *All the necessary apparatuses and equipment to transport, package and store the final shea butter product*
- These profiles should itemize the alternatives available to fulfill the task. The typical capacity of equipment, and key strengths and weaknesses of alternatives.
- Outline three to five alternative technical site layouts and preferred choice of technology for the collection sites (this may vary depending on the type of collection sites – e.g., distance, size, number of women's groups, etc.) and the processing centres, ensuring the options utilize clean technology and renewable energy, are modular and scaleable, and cover the full value chain (incl. necessary transport methods and storage facilities), and can achieve the following:
 - *Depulping*
 - *Fruit meat processing (drying/cooking)*
 - *Nut boiling, cracking and drying*
 - *Fat extraction from almonds*
 - *Fat refining and cooling*
 - *Ecological packing for long-haul road transportation*
 - *Renewable power sources*
 - *Water pumping and recycling*

– *Waste processing and management*

- Refine initial draft designs through interviews with international experts and suppliers
- Engage with local and international suppliers to confirm technical and commercial feasibility for implementation and scale-up
- Prepare details of top two designs, including technical specification, , expected life of equipment, potential source of equipment, capacity, architectural designs, maintenance requirements, skills/training required to operate, estimated costs (capex and operating costs), interoperability with existing technologies used by women's groups, resource flows (energy, water, waste, etc.), scalability, key risks, and product flows (fruit, dried nuts, butter, etc.).

1.1.2. *Proposed Method of Execution*

- Organize a kick-off meeting with the Serious Shea Team in Ouagadougou
- Organize a weekly update of Serious Shea Team
- Provide a monthly report of progress
- Conduct a workshop in Ouagadougou, Burkina Faso, and present top three high-level technical design alternatives to Serious Shea. The workshop will a) identify the preferred criteria for a successful technical design, b) understand the 3 designs identified; c) consider the alignment of each design to the criteria, d) identify adjustments required to meet stakeholder needs.
- Assist Serious Shea in selecting the preferred design (giving consideration to the stakeholder feedback from the workshop) including making any adjustments.
- Draw on best practice in the vegetable fat processing industry, and prepare designs that are optimal and scalable Burkina Faso
- Ensure designs are commercially viable, and account for local conditions and local equipment supply/import solutions

1.1.3. *Expected Deliverables*

- Profiles of key items for equipment to be considered within technical designs
- Three high-level technical designs and specifications for the collection sites, storage facilities, transportation process and processing centres. This should include high-level details of the following:
 - *The architecture, equipment, vehicles, etc.,*
 - *Potential contractors and suppliers for the installation and operation*
 - *Maintenance and scalability considerations*
 - *Product flows (fruit, dried nuts, butter, etc.).*

- *Associated resource flows (e.g., energy use, water consumption)*
- Prepare detailed schematics, 3D representations of the designs for collection sites and processing centres
- Prepare spreadsheets to calculate implementation costs, and reference original quotations from selected equipment suppliers and contractors
- Prepare detailed presentation of resource flows (energy, water, waste, etc.), scalability, and product flows (fruit, dried nuts, butter, etc.).
- Detail operational and maintenance requirements and associated processes
- Prepare detailed quality management processes (including assessing shea nuts harvested, intermediary products, final products). Summarize results from initial tests with existing producers and compare with potential quality from Serious Shea.
- Prepare summary of technical project description to be used in Serious Shea business plan document (Component 1)

1.1.4. Capacity Building

- NA

1.2. Detailed Designs and Specifications

1.2.1. Activities, Components and Tasks

- Prepare validated technical specifications, architectural designs, and 3D representations, and detail the actual costs (capex and operating costs), resource flows (energy, water, waste, etc.), scalability, and product flows (fruit, dried nuts, butter, etc.) within the schematics
- Prepare detailed implementation and operational plans based on the selected technical design, including the selection of technology suppliers (provide quotes from three potential suppliers of each key item), construction partners (provide quotes from three potential construction partners), construction timelines, operational and maintenance requirements, and import requirements
- Develop quality testing approach and test on existing nuts and shea butter collected through existing producers. Compare the anticipated results from the Serious Shea processing centres with the quality produced to date

1.2.2. Proposed Method of Execution

- Draw on best practice in the vegetable fat processing industry, and prepare validated designs that are feasible in Burkina Faso

- Ensure designs are commercially viable, and account for local conditions and local equipment supply/import solutions

1.2.3. Expected Deliverables

- Prepare detailed schematics, 3D representations of the designs for collection sites and processing centres
- Prepare spreadsheets to calculate implementation costs, and reference original quotations from selected equipment suppliers and contractors
- Prepare detailed presentation of resource flows (energy, water, waste, etc.), scalability, and product flows (fruit, dried nuts, butter, etc.).
- Detail operational and maintenance requirements and associated processes
- Prepare detailed quality management processes (including assessing shea nuts harvested, intermediary products, final products). Summarize results from initial tests with existing producers and compare with potential quality from Serious Shea.
- Prepare summary of technical project description to be used in Serious Shea business plan document (Component 1)

1.2.4. Capacity Building

- Where possible, identify and engage the local resources in-country that would be suitable to i) supply and install the necessary processing equipment, and ii) provide logistical support (e.g., transporting and storing the shea)

Team Composition and Qualification Requirements for the Key Experts

The team needs to consist of:

- Shea harvesting specialist (>5 years' experience in the shea sector). This specialist should have experience in rural shea fruit collection and demonstrate the requisite expertise to offer guidance on designing an optimal collection site and primary processing facility (e.g., de-husking and drying)
- Food-quality storage and logistics expert (>5 years' technical experience in food storage and logistics and a degree in engineering). This expert should have experience in designing and managing large-scale West African supply chains, particular for cold chains and perishable goods
- Shea butter processing expert (>5 years' experience in vegetable fats processing). This expert should have experience in the processing of vegetable fats. Experience of the process and equipment to produce food-quality shea butter is preferable.
- Renewable energy engineer (>2 years' experience in renewable energy, with a degree in engineering). This expert should have experience designing small-scale renewable energy systems in rural and remote environments
- Food-quality processing engineer (>2 years' experience in renewable energy, with a degree in engineering). This expert should have a track record in designing and installing efficient large-scale food processing factories and machinery. Experience sourcing and installing equipment in West Africa (and Burkina Faso in particular) is preferable, and ideally past projects involved clean technology and renewable energy components.



Reporting Requirements and Time Schedule for Deliverables

The key deliverables will need to be produced before the following deadlines:

- **Task 3.1:** High-level Designs & Alternatives (11th February 2019)
- **Task 3.2:** Workshop (11th March 2019)
- **Task 3.3:** Validated Designs & Specifications (22nd July 2019)

All results need to also include a summary format.



APPENDIX B – KEY EXPERTS

*Signed CVs of the Key Experts have been appended to the end of the contract



APPENDIX C – BREAKDOWN OF CONTRACT PRICE

A. Remuneration						
No.	Name	Position (as in TECH-6)	Person-day Remuneration Rate		Time Input in Person/Day	{Currency # 1- as in FIN-2} USD
					(from TECH-6)	
	Key Experts					
K-1	Sandeep Khanwalkar	Team leader and harvesting expert	[Home]	600	30	18000
			[Field]	600	20	12000
K-2	Jun Cruz /PTI Technologies	Food-quality storage and logistics expert	[Home]			
			[Field]	500	40	20000
K-3	Siddharth Mukharjee	Planning expert	[Home]	800	15	12000
			[Field]	800	10	8000
	Non-Key Experts					
N-1	Felicite Yameogo	Processing expert	[Home]			
			[Field]	500	20	10000
N-2	William Kwende	Shea Butter technical expert	[Home]	1000	5	5000
			[Field]	1000	15	15000
N-3	Jubin Jacob	Site layout Expert	[Home]	450	8	3600
			[Field]			
N-4	Sandhya Naik	Contract management executive	[Home]	450	7	3150
			[Field]			
					Total Costs	106750

B. [Reimbursable]					
Nº	Type of [Reimbursable Expenses]	Unit	Unit Cost	Quantity	USD
1	Per diem allowances**	{Day}	267	30	8010
2	International flights	{Ticket}	1500	6	9000
3	In/out airport transportation	{Trip}	100	6	600
4	Communication costs between Ouagadougou and field (travel)	{Trip}	100	6	600
5	Local travel - within Ouagadougou	{Trip}	200	10	2000
6	Visa charges	(Person)	200	5	1000
7	Reproduction of reports	Number	50	5	250
8	Laboratory testing				5000
9	Rental of solar equipment				10000
10	Rental of special milling				5000
11	Miscellaneous charges				1790
	Total Costs				43250

The total Contract Cost is **US\$150,000**.

Signature: 

Name and title: Jon White, Director of Serious Shea SARL

Date: 23/12/2018



**FORM TECH-6
(CONTINUED)**

CURRICULUM VITAE (CV)

Position Title and No.	<i>K-1, TEAM LEADER</i>
Name of Expert:	Sandeep Khanwalkar
Date of Birth:	<i>14/08/1973</i>
Country of Citizenship/Residence	Delhi - India

Education: *Master of Social Work 1995, Devi Ahilya University Indore, Graduation – Devi Ahilya University Indore 1993*

Employment record relevant to the assignment: Total professional experience of 23 years

Period	Employing organization and your title/position. Contact in for references	Country	Summary of activities performed relevant to the Assignment
Dec 2017	Senior Programme Director, Development Alternatives	Delhi India	Lead Development Action Domain as Domain lead along with other Co-Domain Leads. Ensure BD generated to meet the requirement of the domain. Coordination with other domain. Joint BD development with BKD and DMD. Contribute in the growth DAG growth as senior team member
Oct 2012 – Sep 2017	Adviser Natural Resource Management Inspire Network for Environment	Delhi India	of an ambitious REDD+ readiness project funded by USAID. Working as Adviser, Natural Resource Management with Inspire Network for Environment, New Delhi and coordinating training and capacity building component of Forest PLUS Program funded by USAID, India. This is a national level program on climate change with Ministry of Environment and Forestry, Government of India. We are working in four State Forest Departments namely Madhya Pradesh, Karnataka, Himachal Pradesh and Sikkim. Was part of team who developed three curriculums on – 1.) Basic orientation course on Global



			Climate Change, 2.) Community-based Forest Carbon Measurement and 3.) Ecosystem Approach to Forest Management. These three courses were developed mainly for state forest department officers. I have conducted number of capacity building courses using these curriculums in program states.
Nov 2010 - Oct 2012	Independent consultant	Bhopal, India	Conducting study on estimating costs for meeting basic needs in one village of Madhya Pradesh. Objective of this study is to estimate the amounts of money involved in meeting the basic needs and bringing a village (or a cluster of villages) out of poverty. A set of three local case studies is being proposed one each for Nepal, India and Afghanistan. The Sasakawa Peace Foundation of Japan funds this project. This is part of a larger study that is being done to look at how Globalisation affects poverty and income distribution. I am part of the study team in India. Developing resource material on Livelihood and Poverty for Social Analysis and Management Development Programme organized by ARAVALI Jaipur and also conducted sessions on social analysis and livelihoods and poverty in two different programmes for ARAVALI. e. Support to GRASP an organisation working in Madhya Pradesh in developing their agriculture based livelihoods strategy in Chhindwara district of Madhya Pradesh.
Feb 2005 – Oct 2010	State Coordinator Madhya Pradesh Society for Rural Livelihood Promotion	Bhopal, India	Contributed in developing remote access server based monitoring system as senior member. Later on managed MPRLP project monitoring task and did regular program monitoring. 2. Coordinated training on tree based farming approach for the project team members. The concept was

			introduced in nine districts of Madhya Pradesh and entire teams of these districts were trained on this concept. 3. Training of field staff on how to do plantation successfully and how to raise nursery in coordination with State Forestry Research Institute and Forest Department, Government of Madhya Pradesh. In addition, follow up of large-scale plantation programme in the field. 4. Coordinating activities related to Monitoring, Evaluation and learning at State Project Management As a team member of field study team for proposal development for Phase II of MPRLP I also contributed one study on 'Land and Water'.
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Membership in Professional Associations and Publications:

Member of Water Supply & Sanitation Collaborative Council

Publication:

1 Paper presented on "Promoting Organic Farming to Alleviate Poverty and Mitigate Climate Change in Tribal Villages of Madhya Pradesh by MP Rural Livelihoods Program" in the IDCA Seventh International Conference- Chicago, Finding Innovative Strategies to Alleviate Poverty and Mitigate Climate Change in India, October 31- November 1, 2009

2 Paper presented on "Organic Farming and Tribal Families" in Global Organic Agribusiness: India Arrives!!! International Seminars: November 27 – 29, 2008 organised by ICCOA, Bangalore

3 Paper presented on "Rain water harvesting through farm pond and well recharging structures to support rain fed agriculture" presented in National Workshop on National Workshop cum Brain Storming on Rainwater Harvesting and Reuse through Farm Ponds, Experiences, Issues and Strategies, Organised by CRIDA, Hyderabad

4 Paper presented on "Water: Availability V/s Management" presented in State Level conference on People Participation on water Conservation organised by Water and Land Management Institute, Bhopal

5 Paper shortlisted for the international conference DDR: Borneo Conference 2010 held at Miri, Malaysia from 8-9 July 2010. Topic of the paper was Loss of identity and livelihoods: Case study from displacement for national Kuno Palpur national forest sanctuary, Madhya Pradesh.

6 Livelihood oriented Micro Planning Manual developed for Madhya Pradesh Rural Livelihoods Project, Bhopal

7 Community Conserved Area in Rajasthan a chapter for an unpublished book on conservation practices adopted by the community in India and managed by Kalpvriksha, Pune. Training in watershed Management, Social and Institutional Issues in Watershed in India. Published by OIKAS, Pune and International Institute for Rural Reconstruction, Silong

8 Participatory Planning Process, Social and Institutional Issues in Watershed in India. Published by OIKAS, Pune and International Institute for Rural Reconstruction, Silong

Language Skills (indicate only languages in which you can work):

English



Hindi

Adequacy for the Assignment:

Detailed Tasks Assigned on Consultant's Team of Experts:	Reference to Prior Work/Assignments that Best Illustrates Capability to Handle the Assigned Tasks
Finalising 1. Report on technical designs and alternatives 2. Report with tow high-level technical designs and specifications for the production process	Areca nut processing work in the field
Finalising 1. Compendium of technical project description and components, detailing Serious Shea business plan (Component 1). 2. Report on quality management processes including comparative analysis 3. Compendium of technical project description and components, detailing Serious Shea business plan (Component 1)	Value chain analysis of shellac in Madhya Pradesh
Kick off meeting, literature review, field visit, meeting with experts, over all coordination, meeting with local experts, market scan, interaction of women producer groups etc.	
Interaction with the local expert, organise workshop with local experts and stakeholders to finalise draft report, demonstration of technology proposed, finalising business plan for implementation and scaling up	

Expert's contact information: (e-mail : skhanwalkar@devalt.org)

Certification:



I, the undersigned, certify that to the best of my knowledge and belief, this CV correctly describes myself, my qualifications, and my experience, and I am available to undertake the assignment in case of an award. I understand that any misstatement or misrepresentation described herein may lead to my disqualification or dismissal by the Client, and/or sanctions by the Bank.


Sandeep Khanwalkar
Name of Expert

Signature

Date: 02.11.2018


Shrashtant Patara
Name of authorized
Representative of the Consultant
(the same who signs the Proposal)

Signature

Date: 02.11.2018

Position Title and No.	<i>K-2, Food-quality, storage, food processing expert, infrastructure expert with in country experience</i>
Name of Expert:	Rodolfo O. Cruz, Jr. (Jun Cruz)
Date of Birth:	Oct. 3, 1960
Country of Citizenship/Residence	Philippines

Education:

1983 B.S. Mechanical Engineering, De La Salle University,

1983 P.R.C. Board Licensed

Experience

1983- 1987 Countryside Millers, Inc.

Scope covered commencement as a staff engineer, grew to planning, designing, implementation of various projects, central engineering group, Peak position was plant superintendent and managing plant operations.

1988 Alfa Laval, Singapore, Consultant.

Assisted in commissioning and evaluating then newly developed packed column physical refineries in Malaysia.

1987-2006 Process Technologies, Inc. – President

Summary of completed projects as of 2005, from concept, engineering, fabrication, construction, to commissioning: (11 off) 20 to 200 TPD continuous chemical type vegetable oil Refineries with soap stock splitting or laundry soap plants.

Following company names/details to be provided if requested.

- (1off) 150 TPD Deodorizer.
- (1off) 150 TPD Low color oil plant.
- (4off) 100 to 250 TPD continuous physical type vegetable oil Refineries.
- (2off) 100 to 175 TPD full press Copra Cil mills.
- (1off) Juice drink plant.
- (2off) 20 to 50 TPD dry type Fractionation plants.
- (1off) 10 TPD USP grade glycerine Refining by ion-exchange.
- (4off) 24 to 48 TPD Texturizing plants (shortenings and margarines).
- (1off) 48 TPD Continuous neutral fat Saponification plant (soap noodles).
- (1off) 10 TPD Continuous Crude glycerine plant (from spent lye).
- **Dismantling projects engineered/completed:**
- Engineered/consulted projects:
 - (1off) Spent clay processing.
 - (1off) Biodiesel plant.
 - (3off) Various oil processing.
 - (1off) Virgin coconut oil plant
- Projects for completion.
 - 100 TPD Fat slpitting
 - 50 TPD fatty acid fractionation and distillation (C6, C8-10, C12, C14, C16, C18)
 - 12 TPD USP grade glycerine refining by distillation (from sweet water)
 - Activated Carbon plant (from cocoshell)
 - Pyrolysis retort with combustible gas extraction
- Fatty acid hydrogenation
- 1 MW power plant (coal fuel, steam turbine)
- 24 TPD Fatty acid saponification plant
- 1993 to 2006 Oleo Manufacturing Corp. -President
- 1995 to 2006 Specialty Oils, Inc. -President
- 1996 to 2006 Richco Inc. - Stockholder

Continued:-

- (2off) 100 to 175 TPD full press Copra Cill mills.
- (1off) Juice drink plant.
- (2off) 20 to 50 TPD dry type Fractionation plants.
- (1off) 10 TPD USP grade glycerine Refining by ion-exchange.
- (4off) 24 to 48 TPD Texturizing plants (shortenings and margarines).
- (1off) 48 TPD Continuous neutral fat Saponification plant (soap noodles).
- (1off) 10 TPD Continuous Crude glycerine plant (from spent lye).
- (2off) 50 TPD Interesterification plants with post processing.
- (1off) 50 TPD Hydrogenation plant with post processing.
- (1off) 500 TPD cottonseed oil solvent extraction plant.
- (1off) 50 TPD soybean full press oil mill.
- (1off) Fixed bed catalyst Esterification plant.
- (off) 125 TPD Fat splitting.
- (1off) 100 TPD Fatty acid Fractionation and Distillation (C6-10, C12-14, C16-18).
- (1off) 20 TPD USP glycerine Refining by distillation (from sweet water).
- (1off) Virgin coconut oil plant.

Expert's contact information: (e-mail....., phone.....)

Certification:

I, the undersigned, certify that to the best of my knowledge and belief, this CV correctly describes myself, my qualifications, and my experience, and I am available to undertake the assignment in case of an award. I understand that any misstatement or misrepresentation described herein may lead to my disqualification or dismissal by the Client, and/or sanctions by the Bank.

Name of Expert

Signature

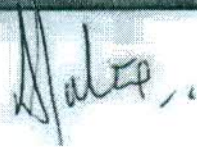
Date: 02.11.2018



Name of authorized
Representative of the Consultant
(the same who signs the Proposal)

Signature

Date



Position Title and No.	K-3, Processing expert, in country expert
Name of Expert:	Félicité dite Maman Karité Yameogo
Date of Birth:	2 April 1958
Country of Citizenship/Residence	Burkinabe

Designation: CEO of New Karikis International SARL

School level: BAC G 2

Professional Training:

Institution	Qualification/Degree/Certificate
	Business Management in Court Casting 1978
Agency for International Development USA	Agribusiness planning 1994
American Shea Butter Institute	Quality Grade Certificate, 2005
USAID / WATH	Certificate of Shea Butter Technician, 2005
USAID / WATH	Certificate for Exporting Shea Butter to International Markets, 2005
USAID / WATH	Certificate for Shea Finished Products for International Markets, 2006
NEWHOPE USA	Standards Agreement Natural Products Expo 2007
USAID / WATH	Certificate of Participation Technology for USAID / WATH 2010 Exporters
	Certificate of Professional Qualification (CQP) Shea Butter / 2016 Burkina Faso

Professional Experience:

- National Coordinator of the National Union of Kiswendsida groups in Burkina Faso
- Formulation of good shea butter production practices / modules set up in 2001 video support for training courses, support project for the sectors and the national shea project
- Training and sponsorship of several hundred groups in shea processing (Burkina, Mali, Togo, Ghana, Ivory Coast, Benin, Nigeria, Chad, Guinea, USA)
- Consultant in charge of setting up a shea processing unit, Northern Togo 2004
- Coordinator of Women in the Shea Sector of Burkina Faso 2000/2005
- Founding member of the Global Shea Alliance
- Founding member and Vice-President of the Burkina Faso Shea sector table
- Producers' representative of Africa 2015 Global Shea Alliance

Awards:

- UNIFEM Gender Sensitive Business Award, New York 2005
- Knight of the Order of National Merit / Economy and Finance 2005
- Knight of the Order of National Merit Commerce 2011
- AWEP / AGOA Ambassador GAMBIA 2011
- Officer of the Order of National Merit 2013
- Global Shea Alliance Award to support the Shea industry 2018
- SwitchAfrica Green Award WEP -Burkina 2018

Expert's contact information: (e-mail....., phone.....)

Certification:

I, the undersigned, certify that to the best of my knowledge and belief, this CV correctly describes myself, my qualifications, and my experience, and I am available to undertake the assignment in case of an award. I understand that any misstatement or misrepresentation described herein may lead to my disqualification or dismissal by the Client, and/or sanctions by the Bank.



Name of Expert

Signature

Date: 02.11.2018

Shrashtant Patara

Name of authorized

02.11.2018

Representative of the Consultant
(the same who signs the Proposal)

Signature

A handwritten signature in blue ink, appearing to read "Shrashtant Patara".

Date:

A handwritten mark in blue ink, possibly a stylized signature or initials.

Position Title and No.	<i>K-4, PLANNING EXPERT</i>
Name of Expert:	Siddharth Mukherjee
Date of Birth:	<i>24/08/1969</i>
Country of Citizenship/Residence	Delhi - India

Education: *Management Graduate IIMT Ghaziabad 1992, Graduation – Delhi University 1989*

Employment record relevant to the assignment: Total professional experience of 26 years

Period	Employing organization and your title/position. Contact in for references	Country	Summary of activities performed relevant to the Assignment
Sept 2018	CFO -TARAlife	Delhi - India	Solar project evaluation
Jun 2016 Aug 2018	Chief Executive Officer Ecco Solar Ltd	Noida - India	Solar EPC and Product Manufacturing Co.
Jan 2009 – Present	C.E.O. and Founder Green Grameen Foundation	Delhi - India	Rural Development and Microfinance of Solar Lanterns and Home Lights
Jan 2009to Jan 2011	CEO - Maharishi Solar Ltd	Noida - India	Solar Panel manufacturing company

Membership in Professional Associations and Publications:

Solar Energy Society of India (SESI) , NHRDN,

Gerson Lehrman Group (GLG)

Language Skills (indicate only languages in which you can work):

English

Hindi

Adequacy for the Assignment:

Detailed Tasks Assigned on Consultant's Team of Experts:	Reference to Prior Work/Assignments that Best Illustrates Capability to Handle the Assigned Tasks
Literature review, finalising reports, detailed planning, cost analysis etc.	Have done large IFC/KfW/FMO funded project on PVMTI (Photo Voltaic Market Transformation Initiative)
Literature review, field visit, meeting with experts, over all coordination, meeting with local experts on Solar inclusion, market scan, interaction of women producer groups etc.	Similar projects executed in past on increasing efficiency of farming thru drip irrigation, solar dryer / pumps and power plants.

Expert's contact information: (e-mail....., phone.....)

Certification:

I, the undersigned, certify that to the best of my knowledge and belief, this CV correctly describes myself, my qualifications, and my experience, and I am available to undertake the assignment in case of an award. I understand that any misstatement or misrepresentation described herein may lead to my disqualification or dismissal by the Client, and/or sanctions by the Bank.

Name of Expert
Siddharth Mukherjee

Signature

Date: 02.11.2018

{day/month/year}

Name of authorized
Representative of the Consultant
(the same who signs the Proposal)

Signature

Date

Position Title and No.	K-5, Shea Butter technical expert, industrial expert, in county and international marketing expert
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1. **Family name:** Kwende
2. **First names:** William Fidel Souleymane
3. **Date of birth:** April 25th 1972
4. **Nationality:** Burkinabe
5. **Civil status:** Single
6. **Education:**

Institution [Date from - Date to]	Degree(s) or Diploma(s) obtained:
University of Quebec In Montreal (1995-1996)	Certificate in Micro Electronics, Material Science engineering. Partially completed post gradual studies in designing materials for semi conductors
George Washington University, Washington (1990-1994)	Computer engineering degree, focus on Information systems and networks design and implementation
Elsevier, London (10/2005)	Biometric technologies and application, identification systems

7. **Language skills:** Indicate competence on a scale of 1 to 5 (1 – basic / 5 - excellent)

Language	Reading	Speaking	Writing
English	5	5	4
French	5	5	5
Spanish	4	4	3
Bambara (Mali, Burkina)	3	2	2
Wolof (Senegal)	n/a	4	n/a
Portuguese	2	1	1
Tagalog (Philippines)	1	2	1

8. **Membership of professional bodies:** International Who is Who of professionals, Washington DC; Georgetown University Alumni Philippines professionals group; Lions club international; UN interagency group for emergency communications; Burkina Faso International expert group for ITC; Border Security Technology group

9. **Skills:** Leadership, Public Communications, Program Management, Product design, Marketing Trading, Logistics , Systems optimisation , Biometrics System Design and Engineering, International relations, Diplomacy , Information system engineering , Business strategy , Procurement , Business intelligence , Energy , Training, Team Building.

10. **Other skills:** Windows Servers, Linux (SuSE, Debian), ISA Server, Access, MS SQL 7.0/2000 Servers, MS SQL Server CE 2.0, Apache, MySQL, FirstClass Internet and Intranet Server 5/6, Visual Basic 6.0, IIS, Deamweaver, ERWin 4, Windows XP/ME/95/98, 2000, DOS/Windows 3.x1, ODBC, TCP/IP, MS Project, Front Page, Visual Studio 6.0 / .NET, MS Office, and PhotoShop. Programming Languages: VB .NET, ASP. NET, ADO.NET, Microsoft .NET Framework SDK, Visual Basic, SQL / Transact-SQL, ASP, VBScript, JavaScript, HTML, DHTML, XHTML, XML, PHP, and CSS. Technical knowledge of java architecture and java development, Cisco Telecommunication architecture , VSAT communication systems , E-Gov and M-Gov strategies and system , UAV infrastructure, Monitoring/encryption/decryption of voice and data communication in real time

11. **Present position:** CEO Alliance Afrique , Integrated Border information systems solutions.

12. **Years within the firm:** 4 years

13. Key qualifications:

- Proven experience in design and implementation of border management and law enforcement systems (software and database, hardware, communications), recently demonstrated in the successful EC-funded Philippines Border Management Project
- Expertise in real-time system for integrated systems for border management and counter terrorism
- Proven experience in design and implementation of information systems for groups biometric registration and voting systems
- Proven experience in design and implementation of information systems for biometric document issuance systems (software and database, hardware, communications)
- Design and customisation of system to produce secure identifications documents
- Experience in integrating Interpol MIND and FIND information systems to country information systems (airport, intelligence, passport issuance agency)
- In-depth knowledge of the region and specifically border management issues
- Excellent relationship with beneficiary agencies and Interpol counterparts in Lyon and the region through the prior implementation of similar projects in the region
- Network of experts in all areas of database implementation



14. Professional experience

Date from - Date to	Location	Company	Position	Description
2017	Afghanistan	IOM	Acting Head of TCU	Supervise the development and implementation of software for the government for the central Identification database and documents with biometric, Voting , returnees processing , law enforcement fix and mobile systems , collection of intelligence and land allocation monitoring GIS systems , Mobiles and Electronic governance integrated solutions.
2016-	Bulgaria	Golden Eyes Partnerships	Consultant	Design of a UAV monitoring solution for Border management and secure perimeters to identify authorized and unauthorized assets with transponders and video recognition
2015- 2016	USA CANADA	IGRIS International	Advisor, Consultant for West Africa	Marketing of the IGRIS system implementing network of gamma ray scanners to allow stationary and mobile detection of illegal contraband and dangerous goods , Feasibility studies for sizing of the systems based on the collection of border management information and the survey of security services
2014- 2015	West Africa	INVIVENT France	Main Consultant	Design and marketing of the security gateways for communication, the system is VSAT based and allows countries to arrange a single entry point for international communications and provide monitoring , interception and decryption tools
2012- 2014	West Africa	Alliance Afrique	CEO , main consultant	Joint mission with SOFIE France, WAEMU regional visa system for 8 countries . Design and production of integrated mobile law enforcement Smartphone and software for border control with solar chargeable batteries. Congo Brazzaville , ALIMA Project , identification and Border crossing system
2009- 2011	Jakarta	ICMPD	Key Expert 2 / ITC	ASEAN Border Management project , integrated border management project for ASEAN country. Regional secure Information systems for head of operation of ASEAN countries , Regional border crossing information system and smart border passes . integration with Interpol I24/7, Data exchange with Europol , VIS
2008 – Présent	Burkina Faso Singapore	Golden Organics Global Burkina	CEO	Founding member of the Agritech Group, create the subsidiary of Agritech Group in Burkina Faso, recruit staff, train staff. Then supervise the identification of land and agricultural project on the national scale, the mobilization of financing, the development of plantations, the establishment of processing factories, the management, the organization of independent producers, the production of agricultural products and agro-forestry, purchase of agricultural products and agro-forestry, packaging, quality control, export of products, identification of partners and

		Golden Oils Agritech Faso Sa Agritech Group Holdings Intl		adapted agricultural technologies in Burkina Faso, transfer agricultural technology to Burkina Faso. Transformation of cosmetic oils, packaging, export, development of packaging, branding, marketing ... Implementation in Dubai, UAE of a logistics and financial platform for the distribution of organic products: Cosmetics, Supplements, biofertilizers, bio-pesticides Development of two brands: CLEO bio cosmetics, and CLEO BIOFOOD (Moringa, Baoba) The establishment and development of biofuels and energy sectors Vice - Chairman of the Investor Network of Bagre Pole, an association which aims to supervise the investors and to represent them on the board of directors of Bagrepole.
2001-2009	Philippines Cambodia Congo RDC Senegal	IOM	ITC Project Coordinator, Consultant	ITC Project coordinator for IOM for Border Management and security information systems in the framework of the Technical Cooperation Unit, including participation in study tours and border assessment missions , integration with Interpol I24/7, Data exchange with Europol , VIS Relevant assignments as ITC Project Coordinator and Consultant included: Strategic planning for the Bureau of Immigration information systems in the Philippines Reform of the national police in Congo: biometric registration of all staff, setup of an HR system, production of the biometric ID cards ISEPP security enhancement for border control: in support of the Philippines Border Management Project (PBMP) this project introduced high-tech equipment, software and communication for the main international borders in the Philippines. It focused on the issues of identification and aims at improving the capacity of front line officers in document integrity detection (passports security features) Philippines Border Management Project: solutions introduced include the automated management of passenger manifests and the tools for biometrics enrolment, authentication, comparison and storage in the border security systems developed, as well as interconnection of the governmental agencies and the Interpol I 24/7 system Enhanced Migration Management project in Cambodia: provision of equipment at borders and training

				As head of network and system, and acting as Head of the ITC service centre, Manila, from 2003-2005 managed delocalization of the ITC support services from Geneva to Manila: relocation and upgrade of all existing systems and telecommunication hubs in Manila, selection and organization of 50 engineers in 3 units (systems, software and telecom) and 3 functional groups (strategic, operational and emergency). This new department was organized to provide 24 hours services to the 238 offices of IOM worldwide in 3 shifts. We implemented an automated monitoring and helpdesk system to monitor the operations. We also designed the main data center and a MPLS network (VPN, voice, video) to support the organization needs. Some of the new systems introduced provided an intranet and digital file management (filenet) and a HRM, Financial and administration systems based on SAP. The network was improved with redundant links, intrusion detection features, bandwidth management, redundant spam server's gateways, hardened DNS servers, SSL VPN access, backup and recovery systems and a disaster recovery site in the Philippines. Development of a comprehensive standard operation procedure based on ISO procedures of information systems. As Regional IT Support Officer based in Dakar, Senegal, support the regional expansion needs of the Dakar office in the west and central African region: policy guidance and advice on most adequate systems for each country, support to formulation of ITC strategies for missions and related budgets, hire ITC staff and implement systems according to Geneva issued guideline to insure inter operability, emergency ITC support for emergency mission located in conflict zones. Some of the systems designed comprised solar power supply, satellite, HF, UHF, VHF, GSM, voice and data secured communication systems.
2000-2001	Dakar, Senegal	Associated Consultants	Founder and Lead consultant	Advisory and technical services for IOM and the Joint Voluntary Agency (JVA) in Senegal, Ghana and Guinea - implementing partners for the refugees processing programs in West Africa. The expert founded Associated Consultants in 1999 to provide services to government and international agencies. The services provided to IOM and JVA were aimed at implementing the World wide Refugee Application Processing Systems of the US State Department's PRM unit at their offices and ensure the interface to their legacy systems.
1999-2000	Dakar, Senegal	Superior Council of industry Senegal	Advisor to the President's Office	This agency composed of leading industry CEOs and experts was created to advise the government, the Tele services group being in charge of the data communication strategy in Senegal. The appointment to the President's office aimed at supporting the implementation of an E-Gov network of Presidential Directives funded by the Canadian Government through advice to the Director of ITC services of the President's office in defining its overall strategy and implementation plans.

1997-1999	Dakar, Senegal, Ecowas	Advanced Integrated Systems International	Regional CEO	Founding member of AIS International, I developed the company from its creation on. The company provided IT solutions, mainly hardware, software and networks. In 1999 its total revenues exceeded 500 million CFA. The company was taken over by "Informatique Associes" the IT subsidiary of the Gras Savoye Group. It was renamed "Informatique Associe, Afrique" and provides ITC services in West Africa.
1996-1997	Dakar, Senegal	Association of the Central Banks of West Africa	ITC Consultant	I managed the ITC services of the Association of the Central Banks of West Africa Bank, providing various solutions, software and hardware as required.
1996-1997	Dakar, Senegal	Comtech Learning Center	Professor	As professor at the Comtech learning Center the expert provided higher level IT training and support to heads of IT departments in Senegal

Expert's contact information: (e-mail....., phone.....)

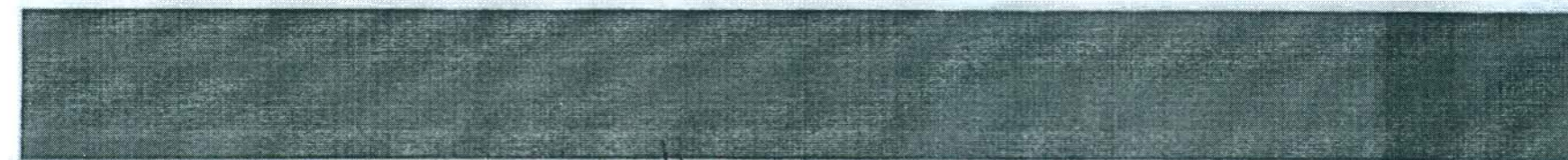
Certification:

I, the undersigned, certify that to the best of my knowledge and belief, this CV correctly describes myself, my qualifications, and my experience, and I am available to undertake the assignment in case of an award. I understand that any misstatement or misrepresentation described herein may lead to my disqualification or dismissal by the Client, and/or sanctions by the Bank.

Name of Expert

Signature

Date: 02.11.2018



Name of authorized
Representative of the Consultant
(the same who signs the Proposal)

Signature

Date